ADMINISTRATIVE REVIEW TRIBUNAL
NDIS DIVISION

Nos 2023/3361, 2023/3363 and 2023/4494
Vida Reid; Simon Reid; Forward Focused Group Pty Ltd (Applicants)
Commissioner of the NDIS Quality and Safeguards Commission (Respondent)

REQUEST FOR FURTHER DIRECTIONS

by the Second Applicant (2023/3363) and the Third Applicant (2023/4494)
in response to the Direction of 2 October 2026

1. I refer to the Direction of 2 October 2026. I make this request for myself (2023/3363) and as director of Forward Focused Group Pty Ltd (2023/4494). Mrs Reid (2023/3361) will write separately. Unless the Tribunal varies the Direction, I and Forward Focused Group will meet the 20 November 2026 date. I ask for the further directions in Part B under sections 24, 55, 56, 70, 79 and 86 of the Administrative Review Tribunal Act 2024. I am not asking to change the order of filing. Any effect on the listing arises only if the conditions in B1 or B4 are triggered.

2. On 5 October 2026 I asked the Respondent for its position on requests B1 to B5 by 9 October. Its reply of 9 October is Annexure A, and Mr Land consented to my giving it to the Tribunal. The Respondent's position on each request is summarised below. Requests B2(c), B6 and D11 were not put to the Respondent.

Request	What it asks	Respondent's position (9 Oct 2026)
B1	Statement of the Respondent's case by 6 Nov 2026 (or, in the alternative, identification of maintained findings and new allegations in its 18 Dec SFIC)	Does not consent
B2(a)	Vacate order 2 of 12 Sep 2023	Says unnecessary; no longer presses the claims
B2(b)	List where each withheld or redacted 2023 index item now appears	Says unnecessary
B2(c)	Project Archer report: Respondent states whether it relies on it; Tribunal revisits the 26 Jul 2024 order or excludes the report	Not put to the Respondent
B2(d)	Attachments P and Q to EC22-002103 produced to the Tribunal for a relevance ruling	Maintains non-disclosure
B3	s 70 application of 7 May 2026 decided before 6 Nov 2026; liberty to file supplementary SFIC on new material	No objection
B4	Witness identification: Respondent 18 Dec; applicants 8 Jan; estimate confirmed within 7 days; hearing not to start before those steps	Consents
B5	Liberty to apply for production (s 79(2)(a)) and NDIA summons (s 74) by 30 Oct or 7 days after the bundle	Says the right time is after the bundle and before the SFICs; otherwise a matter for the applicant
B6	Form of the supplementary bundle; briefs lodged with attachments as at decision date	Not put to the Respondent
D9-D11	Record corrections: FFG's name; the order's end date; listing all three	Not put to the Respondent

	matters together	

A. WHY THESE DIRECTIONS ARE NEEDED

3. On 9 October 2026 the Respondent's lawyers confirmed: "the Commission has not yet filed a SFIC in relation to these matters." Their position is that it is "incumbent upon each Applicant to first set out" why the banning orders should not have been made.

4. I have already done that. Under the directions of 15 May 2024, which required the Respondent to file its statement of facts, issues and contentions (SFIC) after the applicants, I filed mine on 15 July 2024, five days after the date set. On 31 July 2024 the Respondent asked for its own date to be moved. The directions were vacated on 3 October 2024. The Respondent's 9 October 2026 email refers to "an updated SFIC in the case of yourself", so the Respondent accepts that my SFIC is on the file. No direction has required a response to it since 3 October 2024, but nothing prevented one. Twenty-seven months on, the Respondent's position on what I filed is unknown, and the Direction of 2 October requires me to go first a second time.

5. I am unrepresented. The bundles run to about 1,000 pages, and documents were left out of them until 2026; on 7 May 2026 the Respondent accepted that some "should have been provided previously". The Respondent made the decisions and holds the evidence. It can say, in a few pages, which findings and allegations it relies on against each applicant. I cannot answer a case I cannot identify. Specifically:

(a) The internal review decision of 21 April 2023 excluded much of the original case. It found the Clulow claims could not be attributed to me ([29(i)]), gave "minimal weight" to the $1,485,527 expired-plan figure ([29(j)]) and excluded conduct outside my director periods ([32]-[33]). The Respondent's submissions of 17 September 2025 at [54.3] list claims for seven participants without saying which are relied on against which applicant. On the Respondent's own dates at [54.1]-[54.2], I held no office in Forward Focused Group between 3 January 2021 and 1 November 2022. I do not know which findings and allegations the Respondent maintains against me.

(b) The decision does not find that I made, approved or knew of any claim. It attributes Hybrid Hive's conduct to me as a director who "should have been aware" ([38]). Whether I am said to have done something, or to have failed to supervise someone else, calls for different evidence. I need to know which is alleged, in what role, and for which transactions.

(c) The decision relies on Dream Big Employment Pty Ltd and Vitality WA Pty Ltd as "attempts to remain involved in the NDIS sector" ([41]-[43]). The 17 September 2025 submissions say Dream Big was involved in NDIS services "while their banning orders were in effect" ([54.5]) and rely on complaints of "intimidation or harassment" ([54.4]). They identify no act, date or term of the order. None of the decision documents about me finds intimidation or harassment. I need to know whether either is alleged against me and, if so, what, when and by whom.

(d) The decision fixed the period of my order by reference to "the ongoing investigation by the NDIA and law enforcement agencies" and said it "can be revisited" when that ended ([46]-[47]). The charges against Mrs Reid were dismissed for want of prosecution on 23 February 2024; the Respondent now says the prosecution was "dropped"; and its submissions of 17 September 2025 at [38] record the NDIA's advice that there is no current criminal investigation. I need to know whether the Respondent still relies on [46]-[47] and, if not, what it says justifies the order, its scope and its duration.

(e) The operative order prohibits "any involvement with or in the NDIS sector, in any capacity". Sunflower Care Services Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission (No 2) [2025] FCA 1442 held that s 73ZN(2) does not authorise an order prohibiting indirect involvement in supports or services (at [128], [134]) and that prohibited activities must be expressed in terms capable of being obeyed (at [131]). I do not know whether the Respondent maintains the order as it stands, or what order it will ask the Tribunal to make.

(f) The Respondent's evidence was produced for a criminal investigation: 34 witness statements taken by investigators between 11 and 20 October 2022 in the form of statements for a prosecution ("Statement in the matter of R v Vida Reid"), the NDIA Statement of Material Facts, police histories obtained through the Australian Federal Police, and the prosecution notice of 18 October 2022. That prosecution was discontinued and none of the statements has been tested. The Respondent says it "will likely rely solely on the written statements". The NDIA intelligence report of 18 August 2022 that led to that investigation remains withheld (B2(c)).

B. DIRECTIONS SOUGHT

6. B1. Statement of the Respondent's case (ss 79(2)(b), 79(3) and 24(2); ss 56(1), 9 and 55(1)). By 6 November 2026 the Respondent gives each applicant a statement setting out:

(a) which findings in that applicant's internal review decision it maintains and where it departs from them, including which of [54.3]-[54.5] of its 17 September 2025 submissions it relies on against that applicant;

(b) for each allegation, the act or omission, the date, the person, the role the applicant is said to have held, and whether it is put as personal conduct, knowledge or approval, or a failure of oversight (and if so, the step said to have been omitted);

(c) the transactions relied on, with an anonymised participant identifier, claim reference, period, amount and defect;

(d) whether intimidation or harassment is alleged and, if so, the conduct and date;

(e) any conduct after 21 December 2022 relied on, and whether it is alleged as a contravention (and of which term) or as evidence of suitability only;

(f) the main document for each allegation, by tender number and page, and whether it relies on anything not disclosed to the applicants; and

(g) the order it will ask the Tribunal to make for each applicant having regard to Sunflower (No 2), whether it relies on the 2026 amendments to s 73ZN (including s 73ZN(2B)-(2C)), and, for Forward Focused Group, whether it says the review lacks utility.

A reference to an existing paragraph will do. I am not asking for the full SFIC early. I am asking to know the case before I answer it a second time. If the statement is late, or relies on allegations or documents outside the internal review decisions and the bundles served to date, each applicant's date under direction 2 becomes the later of 20 November 2026 and 28 days after receipt, with consequential changes to directions 3 to 5.

In the alternative: the Respondent's SFIC due 18 December 2026 identifies, for each applicant, each finding of the internal review decision it maintains and each allegation not found in that decision, the

17 September 2025 submissions or the bundles served by 23 October 2026; and where any such allegation is raised, each applicant's date under direction 4 becomes 28 days after service of the Respondent's SFIC.

7. B2. Non-disclosure orders and withheld documents.

(a) Order 2 of 12 September 2023. The Respondent "no longer presses the claims set out in the 9 August 2023 index and 12 September 2023 orders" because "the prosecution was dropped". Order 2 was made "until further order, by reason of current criminal proceedings and/or legal professional privilege", and it still stands: it is the reason the Tribunal's FOI unit refused the index documents in August 2026, and the Tribunal's own copy of the T-documents, as released under FOI request 2026.1839, is still the redacted 2023 version. My copy of the June 2024 bundle shows most of the 2023 redactions removed, but not all (for example T9.21, pages 434–441). Direction 1 of 2 October 2026 makes the supplementary bundle subject to the orders of 26 July 2024 and the pending s 70 application; it does not preserve order 2 of 12 September 2023. I ask that order 2 be vacated (s 86).

(b) Within 7 days the Respondent lists, by item number of the 9 August 2023 index, where each of items 1 to 9 and each redacted part of items 12 to 32 now appears in the bundles served, and confirms that nothing from the index remains withheld or redacted other than under the order of 26 July 2024 or the pending s 70 application.

(c) The order of 26 July 2024 ("Tactical Intelligence Report - Project Archer", 18 August 2022). The order was made under ss 37(1AE) and 35(4) of the AAT Act "until further order", on the ground stated in the Respondent's one-page request of 21 June 2024 that disclosure "would identify internal investigative processes which could prejudice future investigations". No submission was made for the applicants, and on 17 July 2024 the Registry itself asked the Respondent why the document was not even described by title. The application was made four months after the charges against Mrs Reid were withdrawn. The report is Attachment 5 to briefing note EC22-002000 (the notices of 19 October 2022) and Attachment J to briefing notes EC22-002103 and EC22-002521 (my notice of intention and my banning order) (as the Respondent's letter of 7 May 2026 confirms), so it was before each decision-maker. I ask that:

(i) by 6 November 2026 the Respondent states whether it relies on the report, or on anything derived from it, for any finding or allegation against any applicant;

(ii) if it does, the Tribunal revisits the order of 26 July 2024 (ss 70 and 86), for example by disclosure with the passages describing investigative methods redacted, or disclosure to the applicants on confidentiality undertakings, so that each applicant has access to information the Tribunal proposes to have regard to (s 55(1)(b)); and

(iii) if it does not, the report is excluded from the material the Tribunal has regard to, and the Respondent says so in its SFIC.

(d) Attachments P and Q to EC22-002103. The Respondent will now produce Attachments A to G. It withholds P and Q, and says both are "summarised at a high level" in the briefing note. The Respondent's descriptions do not match the briefing note. Its letter of 7 May 2026 says Attachment Q relates "solely to companies which are unrelated to this proceeding"; the briefing note at [33.1] says Attachment Q is the risk assessment "in respect of Hybrid", the company on which my order rests. The

letter says Attachment P is "an internal email chain between employees of the Commission" that is not relevant; the briefing note at [31] says it records the NDIA's conditions on the use of its evidence in the decision, including that any disclosure of evidence occur "no sooner than 18 November 2022", the day I received my notice of intention. I ask that the Respondent give Attachments P and Q to the Tribunal (s 79(2)(a)) and that the Tribunal decide whether they are relevant, having regard to paragraph 5(f).

8. B3. Section 70 application of 7 May 2026. The Respondent has no objection to priority. I ask that it be decided before 6 November 2026 if the Tribunal can, and that each applicant have liberty to file a supplementary SFIC and evidence, limited to new material, within 14 days after any later release of documents.

9. B4. Witnesses. The Respondent consents to this request as put to it on 5 October 2026. By 18 December 2026 the Respondent lists every person whose statement it relies on and says who it will call. By 8 January 2027 each applicant says who it requires for cross-examination and who it will call. The hearing estimate is confirmed within 7 days after that, and the hearing does not start until those steps are done. Given paragraph 5(f), each applicant needs that list in time to require attendance.

10. B5. Applications for production. Liberty to apply, by 30 October 2026 or 7 days after the supplementary bundle is filed (whichever is later), for production from the Respondent (s 79(2)(a)) and for a summons to the NDIA (s 74). The Respondent says such applications should come after the bundle and before the parties' SFICs, which this window reflects.

11. B6. Form of the supplementary bundle. The Respondent proposes to "reproduce" the June 2024 bundle. I ask that:

(a) the supplementary bundle come with a table showing what is new, changed or re-redacted compared with June 2024, and that it be indexed, text-searchable and free of unnecessary duplicates; and

(b) each briefing note be lodged with its attachments as they stood on the date of the decision it supported, with a note of any attachment added later. The briefing note of 19 October 2022 (T9) as served includes an attachment dated 1 December 2022 (T9.19), and its own attachment list names Attachments 3, 5, 11, 30 and 52, which are not in the bundle.

C. RESERVATION

12. Nothing in compliance with the Direction or in this request waives any ground available to me or to Forward Focused Group, including that the order varied on 21 April 2023 is beyond s 73ZN(2), that its terms are uncertain, and that the basis stated at [46]-[47] for its duration no longer exists. Those grounds will be in my SFIC.

13. If the telephone directions hearing foreshadowed in the Respondent's email of 28 September 2026 is listed, I ask that these requests be dealt with then. I will attend by video or telephone.

D. MATTERS OF RECORD

14. D9. The Direction and the decision of 31 July 2026 name the third applicant "Forward Focus Group Pty Ltd". Its name is Forward Focused Group Pty Ltd (ABN 98 643 878 639). Please correct the record.

15. D10. The decision of 31 July 2026 at [10] says my order ran "from 22 December 2022 until 22 December 2025". As varied on 21 April 2023 it runs until 12.00am on 22 December 2027 (AWST) and is in force. This looks like a transcription error. Please correct it.

16. D11. The three matters were joined on 19 July 2023. The listings of 6 June 2025 and 20 March 2026 were entered in 2023/3361 only. Please list all three matters together and copy all three applicants on every event.

Simon Reid
Second Applicant (2023/3363), and director of the Third Applicant (2023/4494)
Date: ____ October 2026
Signature: _____

Annexure A: email from the Respondent's solicitor, Mr Craig Land (AGS), 9 October 2026, copied with his consent.

ANNEXURE A

Email from Craig Land, Australian Government Solicitor, 9 October 2026

From: Land, Craig <Craig.Land@ags.gov.au>
Sent: Friday, 9 October 2026 6:42 AM (AWST)
To: simon reid <reid.simon4@gmail.com>
Cc: Dickinson, Karlie; vida Reid; artsreview@art.gov.au
Subject: RE: Reid - ART 2023/3361, 2023/3363, 2023/4494 - proposed further directions [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

OFFICIAL

Dear Mr Reid

Thank you for your patience. For the avoidance of doubt, please continue to direct correspondence in these matters to myself and Ms Dickinson.

As you are aware, the Tribunal has now made timetabling orders of these matters up to a final hearing. Our client will take all reasonable steps to comply with those orders and will advise you as soon as possible if we anticipate any delays. Given the length of time since these matters were commenced, we consider that it is in the interests of all parties for these matters to be resolved as promptly as possible.

We otherwise confirm that the Commission has not yet filed a SFIC in relation to these matters.

In relation to your proposed additional directions below, we provide the following responses:

1. The Respondent does not consent to this proposal. These applications have been commenced by yourself, Mrs Reid and FFG, and it is therefore incumbent upon each Applicant to first set out in a Statement of Facts, Issues and Contentions (or an updated SFIC in the case of yourself) the reasons why you say the banning orders should not have been made. The matters set out in your email are all, in our view, more appropriately dealt with in the Commission's response. If in due course there is anything in the Commission's statements of facts, issues and contentions that you take issue with, the timetabling orders also provide you with an opportunity to file a reply setting out your position at that stage.

2. The Respondent submits that this proposal is unnecessary and provides the following summary by way of explanation.

The Respondent no longer presses the claims set out in the 9 August 2023 index and 12 September 2023 orders. The basis for those claims was that the criminal prosecution against Mrs Reid was ongoing. Once the prosecution was dropped, so were the non-disclosure claims, and in June 2024 our client filed a tender bundle containing unredacted versions of the documents in the 9 August 2023 index. We propose to reproduce the June 2024 tender bundle alongside the supplementary bundle which will be filed in accordance with the Tribunal's orders. This means that the only documents which have not been produced to date are those set out in our letter to you dated 7 May 2026.

In relation to Attachments A through G to EC22-002103, our client considers that these documents are not relevant on the basis that they relate to banning orders against entities other than yourself, Mrs Reid and FFG. However, in the interests of facilitating progress towards a final hearing, we are instructed to include copies of these documents in the supplementary bundle to be filed in accordance with the Tribunal's orders. In relation to Attachments P and Q to EC22-002103 (which are summarised at a high level in that briefing

note), our client maintains that it is not required to disclose these documents for the reasons set out in our letter to you dated 7 May 2026.

3. While it is ultimately a matter for the Tribunal to consider and progress the Respondent's non-disclosure application, the Respondent agrees that it is in the interests of all parties for these applications to be dealt with as a priority and has no objection to the course proposed.

4. The Respondent consents to this proposal. We note that the Respondent will likely rely solely on the written statements of relevant witnesses at this stage, but will reassess this position once we receive a copy of yours, Mrs Reid's and FFG's SFICs. If the Commission's position changes at that time, we will let you know as soon as possible.

5. The Respondent considers that the appropriate time for any such applications would be after receipt of the supplementary bundle but before the parties put on their SFICs. Subject to that point, the Respondent considers that it is a matter for you as to whether you wish to pursue any applications of the kind foreshadowed. Our instructions are that, upon lodgement of the foreshadowed supplementary bundle, the Commission will have produced all documents in its possession or control which are relevant to your application and over which no confidentiality orders are sought.

Our client consents to you providing a copy of this email to the Tribunal by way of indication of its position. Alternatively, we would be happy to prepare a draft communication to the Tribunal in relation to items 3 to 5 above.

Please ensure we are copied to any future emails to the Tribunal in relation to these proposals.

If Mrs Reid has any other proposals, we would be grateful if these could be set out as soon as possible, to avoid unnecessary duplication in correspondence to the Tribunal.

Kind regards

Craig Land
Lawyer
Australian Government Solicitor
T 03 924 21469
craig.land@ags.gov.au